

13	Ramirez vs. Little Onion, Inc. 2022-01290370	Motion for New Trial and Modification of Judgment filed by Betsy Ramirez on 8/24/23 Plaintiff Betsy Ramirez ("Plaintiff") moves for new trial and/or modification of judgment. On July 31, 2023, Judge Oberholzer conducted a 585 hearing and proceeded with gathering evidence to enter requested default by Plaintiff. On August 9, 2023, Judge Oberholzer entered judgment "having reviewed the submitted 585 Default Packet, [and found] judgment for Betsy Ramirez against Little Onion, Inc. and Little Onion, LLC" <i>See</i> ROA 47. Presumably, since Judge Oberholzer awarded damages in an amount less than what was sought by Plaintiff, Plaintiff now wishes to revisit Judge Oberholzer's order based on two things: (1) Plaintiff "suspects" an irregularity in the proceedings; and (2) that Judge Oberholzer "failed to provide any just cause" for reducing damages. <i>See</i> Motion at 3. Preliminarily, although a motion for new trial is typically heard by the judge who conducted the trial, Judge Oberholzer is unavailable for purposes of entertaining the instant motion. First, as to Plaintiff's "suspicions" of irregularity, Plaintiff contends that it "suspects" that Judge Oberholzer "failed to consider Plaintiff's declaration of damages and her counsel's declaration for attorney fees." Motion at 5. This contention is belied by the fact that Judge Oberholzer's minute order of August 9, explicitly states that it "reviewed the submitted 585 Default Packet," inclusive
----	--	---

		of all supporting declarations and documents. ROA 47. Accordingly, there is no evidence to support any of Plaintiff's "suspicions of irregularity" and the Court is not persuaded that this contention forms any basis for a new trial. Second, Code of Civil Procedure section 657 specifically states: "A new trial <i>shall not be granted</i> . . . upon the ground of . . . inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court [] clearly should have reached a different [] decision." (emphasis added). Such is not the case in this instance. Plaintiff contends that it received "inadequate damages," which is expressly contemplated by sec. 657 and is also not a basis for a new trial where, as here, there is <i>no evidence</i> that Judge Oberholzer "clearly should have reached a different decision." Accordingly, Plaintiff's motion for new trial and/or modification of judgment is DENIED. Plaintiff to provide notice.
14	Robicheaux vs. Rowshan 2022-01261647	1. Demurrer to Amended Complaint 2. Motion for Bifurcation filed by Newport Care MSO, LLC, Newport Care Medical Group, Inc., Top Surgical, LLC, Kasra Rowshan, Old Newport Group, LLC, Linden Properties, LLC on 8/24/23 I. Demurrer to Amended Complaint Defendant Linden Properties, LLC, and Defendants and Cross-Complainants Kasra Rowshan, M.D. ("Dr. Rowshan"), Newport